

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-03

EUROMARKET DESIGNS, INC. v.

MSC MEDITERRANEAN SHIPPING COMPANY SA, OCEAN NETWORK EXPRESS PTE.
LTD., EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982), EVERGREEN
MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA
MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN MARINE
(SINGAPORE) PTE. LTD., HMM COMPANY LIMITED, MAERSK A/S, CMA CGM S.A.,
APEX MARITIME CO, INC., CHINA UNITED TRANSPORT, INC., COSCO SHIPPING
LINES CO., LTD., AND WAN HAI LINES LTD.

**COMPLAINANT EUROMARKET DESIGNS, INC.'S MOTION FOR INITIAL
DECISION ON DEFAULT AGAINST RESPONDENTS
CHINA UNITED TRANSPORT, INC. AND COSCO SHIPPING LINES CO., LTD.**

Complainant Euromarket Designs, Inc. (“Complainant” or “EDI”), by and through counsel, hereby respectfully moves the Presiding Officer for an Initial Decision on Default against Respondents China United Transport, Inc. and COSCO SHIPPING Lines Co., Ltd. (each a “Defaulting Respondent” and, collectively, the “Defaulting Respondents”) pursuant to Rules 62 and 65 of the Federal Maritime Commission’s (the “Commission” or “FMC”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. §§ 502.62 & 502.65, for their respective failures to answer or otherwise respond to Complainant’s Verified Complaint (the “Complaint”) within the time specified by Rule 62(b)(1) of the Rules pursuant to 46 U.S. Code Section 41301(b). In support, Complainant respectfully states the following:

1. Complainant filed the Complaint in this matter on December 31, 2024.
2. On January 8, 2025, the Secretary of the Commission served the Notice of Filing of Complaint and Assignment for this proceeding. This notice was subsequently published in the Federal Register on January 15, 2025 (90 Fed. Reg. 3868), establishing deadlines for the initial decision (January 8, 2026) and final decision (July 22, 2026).
3. The Order Designating Administrative Law Judge and Initial Order in this Proceeding were both served on January 17, 2025.
4. The time for the Defaulting Respondents to file an answer or otherwise respond to the Complaint was February 3, 2025.
5. To date, no attorney or other representative has appeared on behalf of either Defaulting Respondent in this proceeding and neither Defaulting Respondent has answered or otherwise responded to the Complaint.
6. Rule 62(b)(6) of the Rules expressly provides:

Failure of a party to file an answer to a complaint . . . within the time provided will be deemed to constitute a waiver of that party’s right to appear and contest the

allegations of the complaint . . . to which it has not filed an answer and to authorize the presiding officer to enter an initial decision on default as provided for in 46 CFR 502.65.

46 C.F.R. § 502.62(b)(6). It further provides that “[a] party may make a motion for initial decision on default.” *Id.*

7. Rule 65(b) of the Rules expressly provides that “[w]hen a party is found to be in default, the Commission or the presiding officer may issue a decision on default upon consideration of the record, including the complaint or Order of Investigation and Hearing.” 46 C.F.R. § 502.65(b).

8. To date, the Defaulting Respondents have failed to file answers to the Complaint or otherwise appear in this proceeding, and are thus both in default.

WHEREFORE, pursuant to Rule 62(b)(6)(ii) of the Rules, Complainant respectfully moves the Presiding Officer for an Initial Decision on Default (i) finding Respondents China United Transport, Inc. and COSCO Shipping Lines Co., Ltd. both to have waived their right to appear and contest the allegations of the Complaint; (ii) finding, based on the verified allegations of the Complaint, that Defaulting Respondents China United Transport, Inc. and COSCO Shipping Lines Co., Ltd. violated the Shipping Act of 1984, as amended, 46 U.S. Code Sections 40101 *et seq.* (the “Shipping Act”), as alleged in the Complaint; and (iii) awarding Complainant reparations pursuant to 46 U.S. Code Section 41305 for the actual injuries caused to Complainant by the Defaulting Respondents’ violations of the Shipping Act alleged in the Complaint; and (iv) awarding such other and further relief as the Presiding Officer may deem appropriate.

Dated: February 12, 2025

Respectfully submitted,

Heowan Noh

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Certificate of Service

I hereby certify that I have this day served the foregoing document upon the Respondents that have appeared thus far in this proceeding by emailing copies of that document to their counsel of record listed below:

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Dated: February 12, 2025

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